



United States Department of the Interior

FISH AND WILDLIFE SERVICE

Ecological Services
4000 Airport Parkway
Cheyenne, Wyoming 82001



In Reply Refer To:
ES-61411/MINES/WY9191

Joyce Holmes
Wyoming Department of Environmental Quality
Herschler Bldg, 3rd Floor West
122 West 25th Street
Cheyenne, Wyoming 82002

MAR 03 2005

Dear Ms. Holmes:

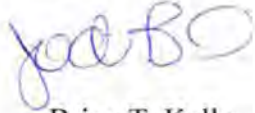
Thank you for the February 15, 2005 notification requesting that the U.S. Fish and Wildlife Service (Service) review the 2004-2005 annual report for Mountain Cement Company's Weaver Quarry (Permit 658). The Weaver Quarry is located in Albany County, Wyoming. Since the 2004-2005 annual report for the Weaver Quarry Permit contains no information regarding habitat, wildlife or plant species occurring in the permit area, the Service is unable to review the document to determine if the mine is operating in accordance with the Endangered Species Act (Act) of 1973, as amended (16 U.S.C. 1531 *et seq.*) or the Migratory Bird Treaty Act (MBTA), 16 U.S.C. 703.

According to the annual report, 20.4 acres of the permit area had topsoil and overburden removed during the reporting period. An additional 6.1 acres of land are expected to be disturbed during the 2005-2006 reporting period. However, the annual report contains no information on federally listed species or migratory birds. Thus, the Service is unable to evaluate the effects of these mining activities at the Weaver Quarry on these species. We recommend that the Weaver Quarry collect information of threatened and endangered species and migratory birds and their habitats in order to better understand the effects of mining activities on wildlife resources.

We appreciate the Department of Environmental Quality's commitment to efforts to ensure the conservation of endangered, threatened, and candidate species. We appreciate your efforts to ensure the conservation of endangered, threatened, and candidate species. If you have any questions regarding our comments or your responsibilities under the Act or this letter, please

contact Jessica Homyack of my staff at the letterhead address or phone (307) 772-2374 extension 24.

Sincerely,



Brian T. Kelly
Field Supervisor
Wyoming Field Office

cc: Mountain Cement Company, Mine Manager, Laramie, WY
WGFD, Statewide Habitat Protection Coordinator, Cheyenne, WY (V. Stelter)
WGFD, Non-Game Coordinator, Lander, WY (B. Oakleaf)

Joyce Holmes - annual report received

From: Joyce Holmes
To: bush, jodi
Date: 2/15/2005 1:24 PM
Subject: annual report received
CC: Bill Hogg; Lowell Spackman

LQD received the 2004-2005 annual report for Permit 658, Mountain Cement Company in Albany County on February 15, 2005.

Please review.

Thanks

Joyce Holmes
DEQ/Land Quality Division
Herschler Bldg. - 3rd West
Cheyenne, WY 82002

(307)-777-7489
Fax (307)-777-5864



**MOUNTAIN
CEMENT COMPANY**

MOUNTAIN CEMENT COMPANY

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copy
DB*

Ramona File

February 10, 2005

Mr. William Hogg
Department of Environmental Quality
Land Quality Division
Herschler Building
122 West 25th Street
Cheyenne, WY 82002

*See Vol. Marked A.R. for
2/28/04 to 2/27/05*



RE: Permit #658 2004-2005 Annual Report

Dear Bill:

Enclosed is Mountain Cement Company's Annual Report for the Weaver Limestone Quarry, permit no. 658. Note that there is an overburden stockpile (OB-1) that has been inadvertently not reported in the previous reports.

Enclosed for your review are materials required for the report (e.g. 2003-2005 report form, a map, AR-1, Groundwater Quality results).

If you have any questions, please contact me at Mountain Cement (mbuchanan@eaglesmaterial.com), Bill Sansing at (307)-745-4879 ext. 121 or Bob Kersey, ext. 135.

Sincerely,

Monte Buchanan
Quarry Technician

Attachment/enclosures



The State
of Wyoming



Department of Environmental Quality

Dave Freudenthal, Governor

Herschler Building • 122 West 25th Street • Cheyenne, Wyoming 82002

ADMIN/OUTREACH	ABANDONED MINES	AIR QUALITY	INDUSTRIAL SITING	LAND QUALITY	SOLID & HAZ. WASTE	WATER QUALITY
(307) 777-7758 FAX 777-3610	(307) 777-6145 FAX 777-6462	(307) 777-7391 FAX 777-5616	(307) 777-7368 FAX 777-6937	(307) 777-7756 FAX 777-5864	(307) 777-7752 FAX 777-5973	(307) 777-7781 FAX 777-5973

December 14, 2004

Mountain Cement Company
5 Sand Creek Road
Laramie WY 82070

RE: Permit No. 658

Dear Mr. Sansing:

Enclosed is an Annual Report Form for your use in reporting all mining and reclamation activities in the referenced permit area since the last report. The new report will be due on or up to thirty days before February 28, 2005, as required by W.S. §35-11-411(a). Upon receipt and review of the report, you will be contacted by a District staff member to arrange the annual inspection.

Please contact me if you have any questions.

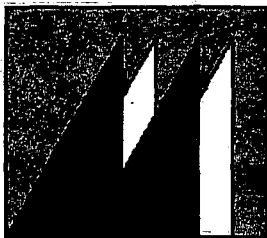
Sincerely,

Joyce Holmes
District I
Land Quality Division

/jh
Enclosure

PT0658-AR-15FEB2005

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**MOUNTAIN
CEMENT COMPANY**

MOUNTAIN CEMENT COMPANY

Ramona File

February 10, 2005

Mr. William Hogg
Department of Environmental Quality
Land Quality Division
Herschler Building
122 West 25th Street
Cheyenne, WY 82002



RE: Permit #658 2004-2005 Annual Report

Dear Bill:

Enclosed is Mountain Cement Company's Annual Report for the Weaver Limestone Quarry, permit no. 658. Note that there is an overburden stockpile (OB-1) that has been inadvertently not reported in the previous reports.

Enclosed for your review are materials required for the report (e.g. 2003-2005 report form, a map, AR-1, Groundwater Quality results).

If you have any questions, please contact me at Mountain Cement (mbuchanan@eaglesmaterial.com), Bill Sansing at (307)-745-4879 ext. 121 or Bob Kersey, ext. 135.

Sincerely,

Monte Buchanan
Quarry Technician

Attachment/enclosures



**MOUNTAIN CEMENT COMPANY
PERMIT #658 WEAVER LIMESTONE QUARRY**

**ANNUAL REPORT
AND MINE AND RECLAMATION PLANS**

FEBRUARY 28, 2004 to FEBRUARY 27, 2005

SUBMITTED TO:
**WYOMING DEPARTMENT OF ENVIRONMENTAL QUALITY
LAND QUALITY DIVISION
HERSCHLER BUILDING
CHEYENNE, WYOMING**

REPORT PREPARED:
FEBRUARY 10, 2005

PREPARED BY:
**MOUNTAIN CEMENT COMPANY
5 SAND CREEK ROAD
LARAMIE, WY
(307)745-4897**

**LDD RECD
FEB 15, 2005
PERMIT 658**

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- ANNUAL REPORT MAP AR-1 Mining History

ATTACHMENTS

- Chain of Custody Record for Well Water Samples during the 2004-2005 Period
- Water Quality Reports for Upgradient Groundwater Monitoring Well SEO Permit #P151433 during the 2004-2005 Report Period.
- Water Quality Reports for Downgradient Groundwater Monitoring Well SEO Permit #P151434 during the 2004-2005 Report Period.
- Water Quality Report - Trip Blank Results

Land Quality Division
Districts I, II & III
Required Annual Report Information

FOR LARGE MINING OPERATIONS

RE: Wyoming Environmental Quality as Amended §35-11-411, Annual Report

1.
 - (a) Name of Permittee **Mountain Cement Company**
 - (b) Address: **5 Sand Creek Road**
 - (c) Mining Permit Number: **Permit No. 658**
 - (d) Date of Permit Issuance (and any Amendment): **February 29, 1996**
 - (e) Mineral(s) Mined: **Limestone**
 - (f) State and Federal Mineral Lease: **None**
2. Time period covered by the report: **February 28, 2004 to February 27, 2005**
3. Mining:
 - (a) Tabulate acreage disturbed (by pits, roads, facilities, etc.) during the report period and illustrate on map.
2.2 acres disturbed during 2003-2004 report period
 - (b) Tabulate acreage affected to date by years and illustrate on map.
2.6 acres disturbed during 1996-1997 (entrance road)
2.6 acres disturbed during 1997-1998 (remaining haulroad)
14.0 acres disturbed during 1997-1998 (initial mining area)
17.1 acres disturbed during 2000-2001
23.4 acres disturbed during 2002-2003
2.2 acres disturbed during 2003-2004
8.1 acres affected on north side of pit for topsoil and spoil storage
3.9 acres affected during mining activity (total discrepancy affected acres)*
20.4 acres disturbed during 2004-2005
94.3 total acres disturbed since mine start-up
6.1 acres projected disturbance for the 2005-2006 reporting period
100.4 acres total affected and projected disturbance
 - (c) Tabulate all topsoil stockpile volumes, date of stockpiling and illustrate on map.
500 CY stockpiled during 1996-1997 (TS-1 entrance road)
1,300 CY stockpiled during 1997-1998 (TS-2 entrance road)
10,700 CY stockpiled during 1997-1998 (TS-3)
10,150 CY stockpiled during 2000-2001 (TS-4)
8,100 CY stockpiled during 2001-2002 (TS-5)
16,700 CY stockpiled during 2003-2004, 2004-2005 (TS-6)
2,090 CY stockpiled during 2004-2005 (TS-7)
1,680 CY stockpiled during 2004-2005 (TS-8)
16,700 CY stockpiled during 2004-2005 (TS-9)
66,320 CY of topsoil are currently stockpiled for reclamation use since mine start-up.

* A more accurate means of analysis (i.e. gps, mapping, etc.) revealed 3.9 affected acres discrepancy in 2003-2004.

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FEB 15, 2005
PERMIT 658

- (d) Tabulate all out-of-pit spoil volumes, dates of placement and illustrate on map.
- 1,300 CY stockpiled by Harney Creek Crossing (OB-1)**
 - 35,000 CY stockpiled during 1997-1998, 2002-2003 (OB-2)**
 - 25,000 CY stockpiled during 2000-2001, 2002-2003 (OB-3)**
 - 20,000 CY stockpiled during 2002-2003 (OB-4)**
 - 0 CY stockpiled during 2004-2005 (all over overburden was returned to the northern active mining pit for reclamation preparation)**
 - 81,300 CY of overburden are currently stockpiled since mine start-up for reclamation use.**
- (e) Tabulate quantity of commodity mined by years.
- 0 tons 1996-1997**
 - 124,376 tons of limestone mined during 1997-1998**
 - 100,500 tons of limestone mined during 1998-1998**
 - 148,520 tons of limestone mined during 1999-2000**
 - 361,150 tons of limestone mined during 2000-2001**
 - 530,950 tons of limestone mined during 2001-2002**
 - 595,530 tons of limestone mined during 2002-2003**
 - 405,027 tons of limestone mined during 2003-2004 (as of February 5th, 2004)**
 - 723,215 tons of limestone mined during 2004-2005 (as of February 9th, 2005)**
 - 2,997,550 tons of limestone mined since mine start-up.**
- (f) Describe any new construction during the report period and illustrate on map; include:
- | | |
|--|-------------|
| 1. Shop facilities, erection sites. | None |
| 2. Roads | None |
| 3. Culverts | None |
| 4. Diversion ditches, collector ditches, interceptor ditches, etc. | None |
| 5. Sediment ponds, containment ponds. | None |
| 6. Monitoring sites. | |
- (g) Describe any environmental problem areas and a proposed plan for mitigating them. Illustrate on map; include:
- | | |
|--|-------------|
| 1. Pit stability problems. | None |
| 2. Subsidence. | None |
| 3. Accidental water discharge, dam failure, etc. | None |
| 4. Slumping or sliding. | None |
| 5. Revegetation problem areas. | None |

4. Reclamation:

- (a) Tabulate the acreage completed during the report period and illustrate on map. Distinguish between:
- | | |
|--|--|
| 1. Backfilled, graded, and contoured. Including date of approval for coal permits. | Back fill of material has begun along the north wall of the pit, but not graded or contoured. |
| 2. Topsoiled. | None |
| 3. Seeded. | None |

4. Reseeded. **None**
5. Indicate where special construction or reclamation practices were used such as for sand bodies or alluvial material.
- (b) Submit a map showing the reconstructed contours. The map must be the same scale and contour interval as the PMT map in the approved permit.
None Completed.
- (c) Tabulate acreage reclaimed (seeded with permanent seed mix) to date by years and illustrate on map.
No seeding was performed during the 2004-2005 report period.
- (d) Describe reclamation procedures used during the report period:
No reclamation occurred during the 2004-2005 report period.
1. Depth of topsoil applied. Indicate whether from stockpile or directly applied.
 2. Type of seed used for seeding during the report period.
 3. Dates of seeding during the report period.
 4. Seeding procedures used.
 5. Rate of seed application.
 6. Type and rate of any fertilizer applied.
 7. Type and rate of mulch applied.
 8. Rate of irrigation water applied.
 9. Any deviations to the approved reclamation plan including, in addition to the items above, changes to the contour or location of post mining features.
- (e) Describe results of previous revegetation efforts; include:
- | | |
|---|-------------|
| 1. Types of seed that have germinated and are growing. | None |
| 2. Types of seed that are not growing successfully. | None |
| 3. Areas experiencing problems with weeds and weed types. | None |
| 4. Significant erosional problems. | None |
| 5. Areas if unsuitable overburden on the surface. | None |
| 6. Procedures used or proposed to correct these problems. | N/A |
- (f) Summarize the actual reclamation costs incurred during the report period. Costs should be itemized for each operation (i.e., grading, topsoil replacement, seeding, etc.) and for each type of disturbance (i.e., spoil, haul roads, facilities removal, etc.) on a per-acre basis.
Not Available
5. Describe in detail mining plans for the coming year including revised time schedules and all proposed deviations from previously approved plans. Acreages should be tabulated and illustrated on a map.
See Mine and Reclamation Plan Summary and Maps AR-1.
6. Describe in detail reclamation plans for the coming year including revised time schedules and deviations from previously approved plans. Acreages should be tabulated and illustrated on a map.
See Mine and Reclamation Plan Summary and Maps AR-1.
- NOTE: On items 5 and 6 above, any proposed deviation from the approved mine and reclamation plan must be described in detail. The proposed mining and reclamation plans will be reviewed and the operator will be notified if further information is required. "Significant" deviations will require permit revision application (Form 11) and public notice pursuant to Chapter VII Section 2 of Land Quality Division Noncoal Regulations.
See Mine and Reclamation Plan Summary.
7. Describe in detail all monitoring activities during the report period, summarize the data, describe procedures to correct any noted problems and deviations from previously approved methods, including:

- | | | |
|-----|---|---|
| (a) | Groundwater analyses. | Two wells sampled for analyses during the 2004-2005 reporting period. See Tables V, VI, and attachments for groundwater characteristics summary. |
| (b) | Surface water analyses and discharge data. | None Available |
| (c) | Precipitation data. | None Available |
| (d) | Subsidence monitoring. | None Available |
| (e) | Overburden analyses. | None Available |
| (f) | Topsoil quantities – compare calculated and actual. | None Available |
| (g) | Vegetation data. | None Available |
| (h) | Wildlife data. | None Available |
| (i) | A map showing and identifying monitoring locations. | See Annual Report Map for Monitoring Well locations. |

8. Operator's Reclamation Performance Bond Estimate as required by Wyoming Statute §35-11-417. Reclamation cost estimates should be itemized in detail to reflect the actual estimated costs of reclaiming all lands which have been affected to date and those lands to be affected during the next report period. Costs must reflect procedures as specified in the approved mine and reclamation plan. The estimated cost of dismantling and disposal of all facilities and structures must be included. Salvage value will not be used to offset bonding requirements. Reclamation projected for the coming year will not be used to offset bonding requirements. Pit backfill costs must reflect actual yardages to be moved. Actual yardages to be moved will reflect the removal or placement of additional material to correct any deviations between the PMT map and the map submitted for part 4.(b).

See attached Table II and Appendix for estimated reclamation costs.

9. Supply any additional information as requested by the Division to:
- | | | |
|-----|---------------------------|-------------|
| (a) | Notices of violation | None |
| (b) | Orders | None |
| (c) | Permit stipulations; and | None |
| (d) | Other special conditions. | None |

10. All drill holes used for immediate developmental expansion of the advancing pit(s) shall be tabulated by location and depth and shown on the mining plan map. Pursuant to W.S. §35-11-404(e), all drill holes used for exploration shall be reported to the LQD Abandoned Drill Hole Program Supervisor and the State Engineer. **None**

ANNUAL REPORT MAPS

1. Maps must be clear and legible contour maps or recent aerial photos. The preferred scale is 1" = 500'.
2. Map sheets should be of a reasonable size, generally not to exceed 48" on a side.
3. Maps must have a title block with:
 - (a) Map title.
 - (b) Name and address of permittee.
 - (c) Permit and amendment numbers.
 - (d) Annual report period.
 - (e) Scale, north arrow, contour interval, date of photography, etc.
4. All maps must show:
 - (a) Legal subdivisions – section, township, and range lines clearly labelled.
 - (b) Permit area boundary clearly shown and labelled.

(c) Amendment areas clearly shown and labelled.

5. The following features should all be clearly identified:

- (a) Topsoil stockpiles (numbered)
- (b) Settling ponds and sediment control structures.
- (c) Haul roads.
- (d) Pits identified by location, name, number, etc.
- (e) Ramps (numbered)
- (f) Out-of-pit spoil dumps including date of initial placement of material (if permanent, give approval date).
- (g) All waste disposal sites including, but not limited to:
 - 1. Carbonaceous waste dumps.
 - 2. Partings dumps.
 - 3. Fly ash disposal sites, etc.
 - 4. Landfill sites.
- (h) Diversion ditches
- (i) Monitoring sites
- (j) Facilities location (silos, labs, crushers, washbays, etc.)

6. History of mining and reclamation should be documents for all areas. The preferred method is to outline separate areas on the map and assign each a number. Then a summary should be presented listing the following information for each separate area:

- (a) Acreage
- (b) Initial date of disturbance.
- (c) Date of regrading.
- (d) Date of approval of grading.
- (e) Date of topsoiling and approximate depth, source of topsoil.
- (f) Date of mulching and type of mulch.
- (g) Date of seeding.
- (h) Seed mix.
- (i) Date and mix of reseeding.
- (j) Any reworking such as repair of gullies, etc.
- (k) Bond status of areas (type of bond, date of any release and percent released).

7. All areas to be affected by mining and reclamation activities in the coming year should be outlined and labelled.

Annual Report Attachment

A. Please indicate any change in company name or business organization.

Eagle Materials, Inc.

3811 Turtle Creek Blvd.

#1100

Dallas, TX 75219

B. List the names and addresses of the following:

1. General Manager

Mike Meysing, Plant Manager

2. Party to Receive Notice

William Sansing, Environmental Manager

C.

List the names and addresses of all officers, owners and/or controllers. Include titles/positions and beginning and ending dates.

MINE AND RECLAMATION PLAN SUMMARY

Introduction

Mountain Cement Company continued to mine at the Weaver Quarry WDEQ/LQD Permit No. 658 during the past report period. The area east of the pit is has been stripped during the 2002-2003 report period and has been abandoned. Groundwater monitoring has occurred using the newly installed monitoring wells (Map AR-1). Mining history and disturbance summary is depicted in the annual report map, AR-1.

Mine Plan

The following mine plan describes the actual mining activities for the 2004-2005 report period and future mining operations for the 2005-2006 report period at Mountain Cement Company Weaver Limestone Quarry, Permit No. 658.

Past Mining Activities: Mining was abandoned in the northeast corner of the pit area due to inferior quality of the limestone. Topsoil and overburden was removed from portions of this area and will later be reclaimed. Another adjacent block, south of the current pit area, was opened starting at the west disturbance line and advanced eastward. Stripping and removal of topsoil and overburden was done in front of the advancing mining block. Approximately **20.4 acres** were disturbed (stripped) during the 2004-2005 report period. A total of **93.4 acres** have been affected to date. Approximately **31,230 CY** of topsoil were stockpiled during the 2003-2004 report period (TS-6, TS-7, TS-8, & TS-9). A total of **66,320 CY** of topsoil and **81,300 CY*** of overburden are stockpiled for reclamation use.

Projected Mining Activities: Mountain Cement Company plans to continue expanding the southern adjacent pit area eastward, from the west disturbance line, as shown in the Annual Report map. Approximately **6.1 acres** are proposed to be disturbed during the 2005-2006 reporting period. Topsoil will be removed and stockpiled out of the floodwaters, and toe-ditched. Overburden will be placed in the northern adjacent pit for reclamation purposes.

* There is approximately 1,300 CY of overburden stockpiled near the Harney Creek crossing and was added to the total during this year's report (2004-2005).

Reclamation Plan

The following reclamation plan describes actual past reclamation and expected future efforts.

Past Reclamation Activities:

Reclamation has not yet been initiated at this mine site. Limestone mining began during the 1997-1998 report period. Upon completion of mining in the north section, reclamation will occur. Initial backfilling of material has occurred along the north and west highwall to prepare for reclamation.

Future Reclamation Activities:

No reclamation is predicted to occur. However, overburden removed from the adjacent, southern pit will be used to backfill and contour the northern pit. Initial backfilling of material has begun along the north highwall of the inactive, northern pit. Limestone mining currently occurs in the adjacent, southern pit area, advancing eastward.

Estimated Reclamation Costs

Mountain Cement Company's reclamation performance bond estimate for the current disturbances and expected disturbances during the 2004-2005 report period are itemized in the Appendix, "Itemized Performance Bond Calculations." The total reclamation costs plus an additional twenty percent (20%) contingency cost, is calculated to be approximately \$279,500. The bond was increased during 2004-2005 period and is currently \$218,900. If the LQD agrees with the calculated cost amounts, an increase in the bond amount may be required. Mountain Cement Company will await the WDEQ/LQD's determination.

Table I - Description of Weaver Quarry Lands.

(Includes acreage projected to be disturbed during the upcoming report period.)

Land Description	Acres
Permit Area	1,372.5
<i>Acreage-to-Affect</i>	<i>511.14</i>
Current Affected Acreage	94.3
<i>Total Acreage-to-Affect Remaining</i>	<i>416.84</i>
Lands Requiring Area Bond Cost	94.3
Proposed Disturbance for 2005-2006	6.1
Lands Requiring Full Incremental Bond Cost	0.0
Lands Requiring Partial Incremental Bond Cost (Reseeding)	0.0
Lands with Requested Full Bond Release, > 2 Years	0.0
Lands w/ Approved Full Bond Release	0.0
Subtotal (Incremental Bond Total)	100.4
Total Native Land Remaining in Permit Area	1272.1
Total of Bonded, Bond Released and Native Lands	1372.5

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FEB 15, 2005
PERMIT 658

Table II - Estimated Reclamation Costs Summary Table for Disturbances through February 28, 2005 and Projected Disturbances for the 2005-2006 Report Period, Weaver Quarry, LQD Permit No. 658.

BOND TYPE	RECLAMATION ACTIVITY	APPENDIX LQD, Guideline #12	AVERAGE ONE-WAY HAUL (Ft)	UNIT	UNIT COST (\$/unit)	TOTAL (\$)
Area Bond	Drilling and Blasting	n/a	n/a	2.0 CY/LF x 7,700 LF	\$0.10/BCY	1,540
	Dozing	E	50 ft.	2.0 CY/LF x 7,700 LF	\$0.111/CY +10% grade	1,709
	Backfilling and Contouring	C 637E Scraper	1,000 ft.	81,300 CY Overburden	\$0.89/CY +10% grade	72,357
	Topsoil Redistribution	C 637E Scraper	1,000 ft.	66,320 CY Topsoil	\$0.89/CY +10% grade	59,025
	Final Grading	G 16H Motor Grader	n/a	100.4 Acres	\$38.45/acre	3,860
	Scarification	P 16H Motor Grader	n/a	100.4 Acres	\$36.30/acre	3,645
	Asphalt Ripping	I D9R Dozer	n/a	2.4 Acres	\$474.92/acre	1,140
	Demolition	J 200 ft.	n/a	10 (20' section.)	\$69.70/unit	697
	Demolition- Harney Creek Culverts	-	n/a	2, 48-inch CMP	-	8,500
	Demolition- Groundwater Monitoring Wells	L	n/a	-	-	2,140
	Seed, Mulch, Prepare Soil	Q	n/a	100.4 Acres	\$625/acre	62,750
	Fencing- removal	Q	n/a	16,200 LF	\$0.96/Ft	15,552

Total LQD Bond Amount= \$218,900

Subtotal \$232,915
 20% DEQ Contingency \$ 46,583
Total (rounded up to nearest \$100 increment): \$279,500

LQD REC'D
FEB 15, 2005
PERMIT 658

Table III - Current Stockpile Summary Table

Pile	Volume	Placement Date
TS-1	500	1996-1997
TS-2	1,300	1997-1998
TS-3	10,700	1997-1998
TS-4	10,150	2000-2001
TS-5	8,100	2001-2002
TS-6	16,700	2003-2004,2004-2005
TS-7	2,090	2004-2005
TS-8	15,100	2004-2005
TS-9	1,690	2004-2005
OB-1*	1,300	Harney Creek Crossing
OB-2	35,000	1997-1998,2002-2003
OB-3	25,000	2000-2001,2002-2003
OB-4	20,000	2002-2003
<i>Total Topsoil available for reclamation:</i>		66,320 CY
<i>Total Overburden available for reclamation:</i>		81,300 CY

* Approximately 1,300 CY of overburden material was placed near the Harney Creek Crossing at an unknown date. This amount was not shown in previous reports and will be used for backfill material.

**Table IV - Groundwater characteristics summary table for the *upgradient* monitoring well (SEO Permit #P151433W).
(Installed October 1, 2003)**

Parameter	1/14/04*	3/10/04	6/9/04	8/24/04	11/30/04
Static Water Depth	190.0	182.0	194.0	194.5	189.5
Lab Conductivity @ 25 °C, $\mu\text{mhos/cm}$	433	449	451	503	451
Total Dissolved Solids @ 180 °C, (mg/L)	270	280	220	280	270
Total Alkalinity as CaCO_3 , (mg/L)	245	244	245	245	243
Total Hardness (mg/L) as CaCO_3 , mg/L	253	250	260	240	244
Nitrate + Nitrate as N (mg/L)	1.50	1.44	1.72	1.39	1.39
Total Petroleum Hydrocarbons, TPH 418.1, (mg/L)	<1	<1	<1	<1	<1

**Table V - Groundwater characteristics summary table for the *downgradient* monitoring well (SEO Permit #P151434W).
(Installed October 1, 2003)**

Parameter	1-14-2004*	3/10/04	6/9/04	8/24/04	11/30/04
Static Water Depth	20	17	21	19.5	21.8
Lab Conductivity @ 25 °C, $\mu\text{mhos/cm}$	411	425	426	464	424
Total Dissolved Solids @ 180 °C, (mg/L)	260	270	230	260	240
Total Alkalinity as CaCO_3 , (mg/L)	223	223	223	223	220
Total Hardness (mg/L) as CaCO_3 , mg/L	237	233	240	226	222
Nitrate + Nitrate as N (mg/L)	1.96	1.91	2.33	1.93	1.62
Total Petroleum Hydrocarbons, TPH 418.1, (mg/L)	<1	<1	<1	<1	<1

* All Water Quality reports are done by Inter-Mountain Laboratories, Inc, 1633 Terra Avenue, Sheridan, Wyoming, 82801.

Itemized Performance Bond Calculations Explanation

I. Pit Backfill and Highwall Reduction

- A. **Highwall Reduction:** The highwall will be reduced to a 3:1 slope by use of shot rock and overburden and unrecoverable limestone. Using drilling, blasting and dozing methods, a highwall of 12 feet average height and approximately 7,700 hundred feet long may need to be reduced to an initial 3:1 slope. At an average highwall of 12 feet, approximately 2.0 CY per linear foot will be dozed to the base of the highwall. Appendix E, "Calculations for Moving Material With a Caterpillar D9N Dozer", 10% Grade, 50 Ft., was used. To calculate drilling and blasting costs, \$0.10/BCY was used.

$$\text{Drilling and Blasting} = 2.0 \text{ CY} \times 7,700' @ \$0.10/\text{BCY} = \$1,540$$

$$\text{Dozing} = 2.0 \text{ CY} \times 7,700' @ \$0.111/\text{CY} = \$1,709$$

- B. **Backfill of Overburden and Reject Material:** A total of 81,300 CY of reject material and overburden will be hauled an average of 1,000 feet over the pit area and used to slope the highwalls and contouring. Appendix C, "Calculations for Moving Materials with a Caterpillar 637E Push-Pull Scraper Fleet", 10% Resisting Grade, 1,000 Ft., was used.

$$81,300 \text{ CY} @ \$0.89/\text{CY} = \$72,357$$

- C. **Replacement of Topsoil:** A total of 66,320 CY of topsoil replacement material will be hauled an average of 1,000 feet over the pit area and roads. Appendix C, "Calculations for Moving Materials with a Caterpillar 637E Push-Pull Scraper Fleet", 10% Resisting Grade, 1,000 Ft., was used.

$$66,320 \text{ CY} @ \$0.89/\text{CY} = \$59,025$$

- D. **Rough and Final Grading:** 100.4 acres will require grading. Appendix G, "Calculations For Final Grading with a Caterpillar 16H Motor Grader", was used.

$$100.4 \text{ acres} \times \$38.45/\text{acre} = \$3,860$$

- E. Scarification: The backfilled material will be scarified with a Caterpillar 16H Motor Grader to relieve compaction prior to topsoil replacement. Appendix P, "Cost Estimate for Scarification of Compacted Surfaces", was used.

$$100.4 \text{ acres} \times \$36.30/\text{acre} = \$3,645$$

II. Access Roads and Demolition

- A. There is approximately 5,110 LF of road to be reclaimed in the permit area. This includes 3,010 LF of paved road and 1,350 LF of unpaved road (750 LF of unpaved haulroad (0.8 acres) is included in the 2004-2005 proposed disturbance). Costs for moving material, grading, and scarification are already included in the previous calculations. Costs for revegetation will be included in the following sections. Only costs are calculated for ripping the 3,010 LF of asphalt. A road, 3,010 feet long by 35 feet wide will yield 2.4 acres. Appendix I, "Cost Estimate for Ripping Asphalt Using a Caterpillar D9R Dozer", was used.

$$2.4 \text{ acres} @ \$474.92/\text{acre} = \$1,140$$

- B. Demolition: There will be no permanent features remaining in the permit area (e.g. culverts). To estimate cost associated with culverts removal, a maximum of 200 feet of culvert will used (10 units). Appendix J, "Cost Estimate for Culvert Removal", was used. One unit equals 20 feet section of CMP.

$$10 \text{ units (200 Ft.)} @ \$69.70/\text{unit} = \$697$$

There are two, 48-inch culverts, with concrete aprons, installed at the Harney Creek Crossing. It has been estimated in previous reports that it will cost about \$8,500 to remove these culverts.

$$2, 48\text{-inch culverts at the Harney Creek Crossing} = \$8,500$$

Appendix

- C. **Monitoring Wells:** There are two monitoring wells that will need to be plugged and abandoned once post-mine groundwater characteristics are considered satisfactory by the WDEQ/LQD. Appendix L, "Abandonment and Sealing of Cased Drill Holes and Monitoring Wells", was used.

Abandonment and Sealing of two monitoring wells = **\$2,140**

III. Revegetation Costs

- A. **Final Revegetation:** Costs associated with the affected section resulting in vegetation (i.e. seeding, mulching, & prepare soil). This includes the haulroad(s). Appendix Q, "Revegetation Tasks and Costs", was used.

100.4 acres @\$625/acre = **\$62,750**

- B. **Fencing:** Fencing will be used to protect the reclamation from livestock grazing or damage until vegetation growth is established and/or bond released. Approximately 16,200 LF of fencing is currently installed around the current disturbance area, specifically, 1/3 of the area-to-affect. When affected area is released from the authority of the WDEQ/LQD (i.e. bond release), the cost estimated will reflect fence removal. Appendix Q, "Revegetation Tasks and Costs", was used.

16,200 Ft. @\$0.96/Ft = **\$15,552**

Subtotal

20% DEQ Contingency

Grand Bond Total (rounded up to nearest \$100 increment)

Current Bond Level

\$232,915

\$ 46,583

\$279,500

\$218,900

[illegible]



Inter-Mountain Laboratories, Inc.

Sheridan, WY and Gillette, WY

- CHAIN OF CUSTODY RECORD -

This is a **LABORATORY** DOCUMENT. All shaded fields must be completed.

94739

Client Name <i>Mountain Cement Company</i>		Project Identification		Sampler (Signature/Printed)		Telephone #							
Report Address <i>5 Sand Creek Road Laramie, WY 82070</i>		Contact Name and Email <i>Bill Sansing Voice <i>William@mountaincement.net</i></i>		ANALYSES / PARAMETERS									
Invoice Address <i>Same</i>		FAX <i>(307) 742-3426</i>								Purchase Order #		Quote #	
ITEM	LAB ID (Lab Use Only)	DATE SAMPLED	TIME	SAMPLE IDENTIFICATION	Matrix	# of Containers	REMARKS						
1	12003-001	11/30/04	8:15am	P95938W	WT	3	Total Dissolved Solids						
2	602	11/30/04	9:00am	123256	WT	3	Hardness						
3	003	11/30/04	9:30am	U.W. 151434	WT	3	Alkalinity						
4	004	11/30/04	10:00am	U.W. 151433	WT	3	Nitrate						
5	005			Trip Blank	WT	3	Petroleum Hydrocarbons						
6							Conductivity						
7													
8													
9													
10													
11													
12													
13													
14													
LAB COMMENTS		Relinquished By (Signature/Printed)		DATE		TIME		Received By (Signature/Printed)		DATE		TIME	
-1		<i>Bill Sansing</i>		11/30/04		11:00am		<i>Michael G. Dwyer</i>		12/1/04		0915	
SHIPPING INFO		MATRIX CODES		TURN AROUND TIMES		COMPLIANCE INFORMATION		ADDITIONAL REMARKS					
☐ UPS		Water WT		☒ Check desired service		Compliance Monitoring ?		☒ Y / ☐ N					
☒ Fed Express		Soil SL		☒ Standard turnaround		Program (SDWA, NPDES, ...)							
☐ US Mail		Solid SD		☐ RUSH - 5 Working Days		PWSID / Permit #							
☐ Hand Carried		Trip Blank TB		☐ URGENT - < 2 Working Days		Chlorinated?		☐ Y / ☒ N					
☐ Other		Other OT		Rush & Urgent Surcharges will be applied		Sample Disposal: Lab		☒ Client					

FEB 15.2005
PERMIT 650

*WEAVER MONITORING WELL
UPGRADIENT*

(WEAVER QUARRY MONITORING)

WELL #U.W.151433

COO RECD
FEB 15.2005
PERMIT 658

WELL No. U.W.151433

East of the Weaver Quarry

Upgradient to the quarry mine

Installed on 10/1/03

Static water level at time of installation was 189 feet

Total depth of well was 340 feet

 $\Delta = 151$ feet

Date Sampled Expressed as	Depth to Static Water Level (feet)	Laboratory -----	Electrical Conductivity @25 °C μ mhos/cm	Total Dissolved Solids @180 °C mg/L	Total Alkalinity as CaCO ₃ mg/L	Total Hardness as CaCO ₃ mg/L	Nitrate + Nitrite as N mg/L	Total Petroleum Hydrocarbons mg/L
1/14/2004	190.0	IML	433	270	245	253	1.5	<1; i.e., ND
Blank	-----	IML	<5; i.e., ND	<10; i.e., ND	1	<1; i.e., ND	<0.01; i.e., ND	<1; i.e., ND
3/10/2004	182.0	IML	449	280	244	250	1.44	<1; i.e., ND
Blank	-----	IML	<5; i.e., ND	<10; i.e., ND	1.5	<1; i.e., ND	<0.01; i.e., ND	<1; i.e., ND
6/9/2004	194.0	IML	451	220	245	260	1.72	<1; i.e., ND
Blank	-----	IML	<5; i.e., ND	<10; i.e., ND	1	<1; i.e., ND	<0.01; i.e., ND	<1; i.e., ND
8/24/2004	194.5	IML	503	280	245	240	1.39	<1; i.e., ND
Blank	-----	IML	<5; i.e., ND	<10; i.e., ND	<1; i.e., ND	<1; i.e., ND	<0.01; i.e., ND	<1; i.e., ND
11/30/2004	189.5	IML	451	270	243	244	1.39	<1; i.e., ND
Blank	-----	IML	<5; i.e., ND	<10; i.e., ND	<5; i.e., ND	<1; i.e., ND	<0.01; i.e., ND	<1; i.e., ND

100 RECD
FEB 15, 2005
PERMIT 658

Report ID: 010403170

1673 Terra Avenue
Sheridan, WY 82801

WATER QUALITY REPORT

Client: Mountain Cement Company
5 Sand Creek Road
Laramie, WY 82070

Project: Well Monitoring

Sample ID: U.W.151433

Lab ID: 0104W03171/5601327NTN

Matrix: Water

Condition: Cool/Intact

Date Received: 03/11/04

Date Reported: 03/25/04

Date Sampled: 03/10/04

Time Sampled: 1000

Parameter	Analytical Result	Units	PQL	Method	Analysis		
					Date	Time	Init.
General Parameters							
Lab Conductivity @ 25°C	449	µmhos/cm	5	SM 2510 B	03/12/04	1622	RM
Total Dissolved Solids @ 180°C	280	mg/L	10	SM 2540 C	03/12/04	1300	RM
Total Alkalinity as CaCO3	244	mg/L	1.0	SM 2320 B	03/12/04	1622	RM
Total Hardness as CaCO3	250	mg/L	1.0	SM 2340 B	03/12/04	0628	
Nitrate + Nitrite as N	1.44	mg/L	0.01	EPA 353.2	03/12/04	1429	JF
TPH 418.1	<1	mg/L	1	EPA 418.1	03/22/04	0941	LA

These results only apply to the samples tested.

Reference: "Standard Methods For The Examination of Water and Wastewater", 19th ed., 1995.
EPA 600/R93/100, "Methods for the Determination of Inorganic Substances in Environmental Samples", Aug. 1993.
U.S.E.P.A 600/4-79-020, "Methods for Chemical Analysis of Water and Wastes", 1983.

Reviewed By:



Karen Barten, Project Manager

LOD RECD
FEB 15, 2005
PERMIT 658

Report ID: 010409260

1673 Terra Avenue
Sheridan, WY 82801

WATER QUALITY REPORT

Client: Mountain Cement Company
5 Sand Creek Road
Laramie, WY 82070

Project: Misc.

Sample ID: U.W.151433

Lab ID: 0104W09261

Matrix: Water

Condition: Cool/Intact

Date Received: 06/10/04

Date Reported: 06/30/04

Date Sampled: 06/09/04

Time Sampled: 0930

Parameter	Analytical Result	Units	PQL	Method	Analysis		
					Date	Time	Init.
General Parameters							
Lab Conductivity @ 25°C	451	µmhos/cm	5	SM 2510 B	06/11/04	1346	JG
Total Dissolved Solids @ 180°C	220	mg/L	10	SM 2540 C	06/11/04	0700	JG
Total Alkalinity as CaCO3	245	mg/L	1.0	SM 2320 B	06/11/04	1356	JG
Total Hardness as CaCO3	260	mg/L	1.0	SM 2340 B	06/11/04	1218	
Nitrate + Nitrite as N	1.72	mg/L	0.01	EPA 353.2	06/14/04	1334	RM
TPH 418.1	<1	mg/L	1	EPA 418.1	06/14/04	0948	LA

These results only apply to the samples tested.

Reference: "Standard Methods For The Examination of Water and Wastewater", 19th ed., 1995.

EPA 600/R93/100, "Methods for the Determination of Inorganic Substances in Environmental Samples", Aug. 1993.

U.S.E.P.A 600/4-79-020, "Methods for Chemical Analysis of Water and Wastes", 1983.

Reviewed By:

Wade Nieuwsma, Water Lab Supervisor

LQD RECD
FEB 15.2005
PERMIT 658

Sample Analysis Report

CLIENT: Mountain Cement Company
5 Sand Creek Road
Laramie, WY 82070

Date Reported: 9/10/2004

Report ID: S0408286001

Project:
Lab ID: S0408286-003
Client Sample ID U. W. 151433
Matrix: Water

Work Order: S0408286
Collection Date: 8/24/2004 10:30:00 AM
Date Received: 8/25/2004 9:40:00 AM

Analyses	Result	PQL	Qual	Units	Date Analyzed/Init	Method
General Parameters						
Electrical Conductivity	503	5		µmhos/cm	08/30/2004 1805 JG	SM 2510B
Total Dissolved Solids (180)	280	10		mg/L	08/26/2004 1420 KA	SM 2540
Alkalinity, Total (As CaCO ₃)	245	5		mg/L	08/30/2004 1805 JG	SM 2320B
Hardness, Calcium/Magnesium (As CaCO ₃)	240	1		mg/L	08/31/2004 1050 JG	SM 2340B
TPH 418.1	ND	1		mg/L	09/07/2004 1005 LA	EPA 418.1
Anions						
Nitrogen, Nitrate-Nitrite (as N)	1.39	0.05		mg/L	08/27/2004 1350 RM	EPA 353.2
Cations						
Calcium	62	1		mg/L	08/26/2004 1129 MH	EPA 200.7
Magnesium	20	1		mg/L	08/26/2004 1129 MH	EPA 200.7

These results apply only to the samples tested.

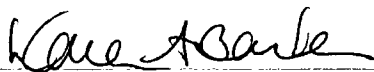
Qualifiers:

- * Value exceeds Maximum Contaminant Level
- E Value above quantitation range
- J Analyte detected below quantitation limits
- S Spike Recovery outside accepted recovery limits

B Analyte detected in the associated Method Blank
H Holding times for preparation or analysis exceeded
ND Not Detected at the Reporting Limit

Page 3 of 4

Reviewed by:



LQD RECD
FEB 15, 2005
PERMIT 658

Sample Analysis Report

CLIENT: Mountain Cement Company
5 Sand Creek Road
Laramie, WY 82070

Date Reported: 12/13/2004

Report ID: S0412003001

Project: Well Monitoring
Lab ID: S0412003-004
Client Sample ID U. W. 151433
Matrix: Water

Work Order: S0412003
Collection Date: 11/30/2004 10:00:00 AM
Date Received: 12/1/2004 9:15:00 AM

Analyses	Result	PQL	Qual	Units	Date Analyzed/Init	Method
General Parameters						
Electrical Conductivity	451	5		µmhos/cm	12/01/2004 1320 KA	SM 2510B
Total Dissolved Solids (180)	270	10		mg/L	12/01/2004 1211 KA	SM 2540
Alkalinity, Total (As CaCO ₃)	243	5		mg/L	12/01/2004 1320 KA	SM 2320B
Hardness, Calcium/Magnesium (As CaCO ₃)	244	1		mg/L	12/02/2004 1337 KA	SM 2340B
TPH 418.1	ND	1		mg/L	12/03/2004 1000 SP	EPA 418.1
Anions						
Nitrogen, Nitrate-Nitrite (as N)	1.39	0.05		mg/L	12/02/2004 1110 RM	EPA 353.2
Cations						
Calcium	63	1		mg/L	12/01/2004 1046 MH	EPA 200.7
Magnesium	21	1		mg/L	12/01/2004 1046 MH	EPA 200.7

These results apply only to the samples tested.

Qualifiers:

- Value exceeds Maximum Contaminant Level
- E Value above quantitation range
- J Analyte detected below quantitation limits
- ND Not Detected at the Reporting Limit

B Analyte detected in the associated Method Blank
H Holding times for preparation or analysis exceeded
L Analyzed by a contract laboratory
S Spike Recovery outside accepted recovery limits

LQD RECD
FEB 15, 2005
PERMIT 658

Reviewed by:



*WEAVER MONITORING WELL
DOWNGRADIANT*

(WEAVER QUARRY MONITORING)

WELL #U.W.151434

LQD RECD
FEB 15.2005
PERMIT 658

WELL No. U.W.151434

Southwest of the Weaver Quarry

Downgradient to the quarry mine

Installed on 10/1/03

Static water level at time of installation was 20 feet

Total depth of well was 180 feet

 Δ = 160 feet

Date Sampled <i>Expressed as</i>	Depth to Static Water Level <i>(feet)</i>	Laboratory <i>-----</i>	Electrical Conductivity @25 °C <i>µmhos/cm</i>	Total Dissolved Solids @180 °C <i>mg/L</i>	Total Alkalinity as CaCO ₃ <i>mg/L</i>	Total Hardness as CaCO ₃ <i>mg/L</i>	Nitrate + Nitrite as N <i>mg/L</i>	Total Petroleum Hydrocarbons <i>mg/L</i>
1/14/2004 Blank	20.0 -----	IML IML	411 <5; <i>i.e.</i> , ND	260 <10; <i>i.e.</i> , ND	223 1	237 <1; <i>i.e.</i> , ND	1.96 <0.01; <i>i.e.</i> , ND	<1; <i>i.e.</i> , ND <1; <i>i.e.</i> , ND
3/10/2004 Blank	17.0 -----	IML IML	425 <5; <i>i.e.</i> , ND	270 <10; <i>i.e.</i> , ND	223 1.5	233 <1; <i>i.e.</i> , ND	1.91 <0.01; <i>i.e.</i> , ND	<1; <i>i.e.</i> , ND <1; <i>i.e.</i> , ND
6/9/2004 Blank	21.0 -----	IML IML	426 <5; <i>i.e.</i> , ND	230 <10; <i>i.e.</i> , ND	223 1	240 <1; <i>i.e.</i> , ND	2.33 <0.01; <i>i.e.</i> , ND	<1; <i>i.e.</i> , ND <1; <i>i.e.</i> , ND
8/24/2004 Blank	19.5 -----	IML IML	464 <5; <i>i.e.</i> , ND	260 <10; <i>i.e.</i> , ND	223 1	226 <1; <i>i.e.</i> , ND	1.93 <0.01; <i>i.e.</i> , ND	<1; <i>i.e.</i> , ND <1; <i>i.e.</i> , ND
11/30/2004 Blank	21.8 -----	IML IML	424 <5; <i>i.e.</i> , ND	240 <10; <i>i.e.</i> , ND	220 <5; <i>i.e.</i> , ND	222 <1; <i>i.e.</i> , ND	1.62 <0.01; <i>i.e.</i> , ND	<1; <i>i.e.</i> , ND <1; <i>i.e.</i> , ND

100 REC'D
FEB 15, 2005
PERMIT 658

Report ID: 010403170

1673 Terra Avenue
Sheridan, WY 82801

WATER QUALITY REPORT

Client: Mountain Cement Company
5 Sand Creek Road
Laramie, WY 82070

Project: Well Monitoring

Sample ID: U.W.151434

Lab ID: 0104W03172/5601327NTN

Matrix: Water

Condition: Cool/Intact

Date Received: 03/11/04

Date Reported: 03/25/04

Date Sampled: 03/10/04

Time Sampled: 0930

Parameter	Analytical Result	Units	PQL	Method	Analysis		
					Date	Time	Init.
General Parameters							
Lab Conductivity @ 25°C	425	µmhos/cm	5	SM 2510 B	03/12/04	1631	RM
Total Dissolved Solids @ 180°C	270	mg/L	10	SM 2540 C	03/12/04	1300	RM
Total Alkalinity as CaCO3	223	mg/L	1.0	SM 2320 B	03/12/04	1631	RM
Total Hardness as CaCO3	233	mg/L	1.0	SM 2340 B	03/12/04	0628	
Nitrate + Nitrite as N	1.91	mg/L	0.01	EPA 353.2	03/12/04	1430	JF
TPH 418.1	<1	mg/L	1	EPA 418.1	03/22/04	0941	LA

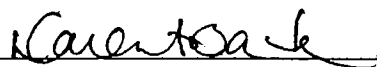
These results only apply to the samples tested.

Reference: "Standard Methods For The Examination of Water and Wastewater", 19th ed., 1995.

EPA 600/R93/100, "Methods for the Determination of Inorganic Substances in Environmental Samples", Aug. 1993.

U.S.E.P.A 600/4-79-020, "Methods for Chemical Analysis of Water and Wastes", 1983.

Reviewed By:


Karen Barten, Project Manager

LQD RECD
FEB 15 2005
PERMIT 658

Report ID: 010409260

1673 Terra Avenue
Sheridan, WY 82801

WATER QUALITY REPORT

Client: Mountain Cement Company
5 Sand Creek Road
Laramie, WY 82070

Project: Misc.

Sample ID: U.W.151434

Lab ID: 0104W09262

Matrix: Water

Condition: Cool/Intact

Date Received: 06/10/04

Date Reported: 06/30/04

Date Sampled: 06/09/04

Time Sampled: 1000

Parameter	Analytical Result	Units	PQL	Method	Analysis		
					Date	Time	Init.
General Parameters							
Lab Conductivity @ 25°C	426	µmhos/cm	5	SM 2510 B	06/11/04	1346	JG
Total Dissolved Solids @ 180°C	230	mg/L	10	SM 2540 C	06/11/04	0700	JG
Total Alkalinity as CaCO3	223	mg/L	1.0	SM 2320 B	06/11/04	1405	JG
Total Hardness as CaCO3	240	mg/L	1.0	SM 2340 B	06/11/04	1221	
Nitrate + Nitrite as N	2.33	mg/L	0.01	EPA 353.2	06/14/04	1335	RM
TPH 418.1	<1	mg/L	1	EPA 418.1	06/14/04	0948	LA

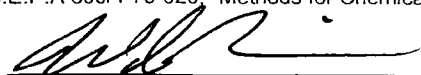
These results only apply to the samples tested.

Reference: "Standard Methods For The Examination of Water and Wastewater", 19th ed., 1995.

EPA 600/R93/100, "Methods for the Determination of Inorganic Substances in Environmental Samples", Aug. 1993.

U.S.E.P.A 600/4-79-020, "Methods for Chemical Analysis of Water and Wastes", 1983.

Reviewed By:



Wade Nieuwsma, Water Lab Supervisor

LQD RECD
FEB 15.2005
PERMIT 658

Sample Analysis Report

CLIENT: Mountain Cement Company
5 Sand Creek Road
Laramie, WY 82070

Date Reported: 9/10/2004

Report ID: S0408286001

Project:
Lab ID: S0408286-002
Client Sample ID U. W. 151434
Matrix: Water

Work Order: S0408286
Collection Date: 8/24/2004 10:00:00 AM
Date Received: 8/25/2004 9:40:00 AM

Analyses	Result	PQL	Qual	Units	Date Analyzed/Init	Method
General Parameters						
Electrical Conductivity	464	5		µmhos/cm	08/30/2004 1755 JG	SM 2510B
Total Dissolved Solids (180)	260	10		mg/L	08/26/2004 1415 KA	SM 2540
Alkalinity, Total (As CaCO ₃)	223	5		mg/L	08/30/2004 1755 JG	SM 2320B
Hardness, Calcium/Magnesium (As CaCO ₃)	226	1		mg/L	08/31/2004 1050 JG	SM 2340B
TPH 418.1	ND	1		mg/L	09/07/2004 1005 LA	EPA 418.1
Anions						
Nitrogen, Nitrate-Nitrite (as N)	1.93	0.05		mg/L	08/27/2004 1349 RM	EPA 353.2
Cations						
Calcium	55	1		mg/L	08/26/2004 1125 MH	EPA 200.7
Magnesium	22	1		mg/L	08/26/2004 1125 MH	EPA 200.7

These results apply only to the samples tested.

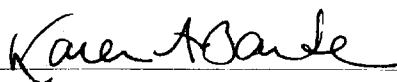
Qualifiers:

- * Value exceeds Maximum Contaminant Level
- E Value above quantitation range
- J Analyte detected below quantitation limits
- S Spike Recovery outside accepted recovery limits

B Analyte detected in the associated Method Blank
H Holding times for preparation or analysis exceeded
ND Not Detected at the Reporting Limit

Page 2 of 4

Reviewed by:



LOD RECD
FEB 15, 2005
PERMIT 658

Sample Analysis Report

NT: Mountain Cement Company
5 Sand Creek Road
Laramie, WY 82070

Date Reported: 12/13/2004

Report ID: S0412003001

Project: Well Monitoring
Lab ID: S0412003-003
Client Sample ID U. W. 151434
Matrix: WaterWork Order: S0412003
Collection Date: 11/30/2004 9:30:00 AM
Date Received: 12/1/2004 9:15:00 AM

Analyses	Result	PQL	Qual	Units	Date Analyzed/Init	Method
General Parameters						
Electrical Conductivity	424	5		µmhos/cm	12/01/2004 1310 KA	SM 2510B
Total Dissolved Solids (180)	240	10		mg/L	12/01/2004 1206 KA	SM 2540
Alkalinity, Total (As CaCO ₃)	220	5		mg/L	12/01/2004 1310 KA	SM 2320B
Hardness, Calcium/Magnesium (As CaCO ₃)	222	1		mg/L	12/02/2004 1337 KA	SM 2340B
TPH 418.1	ND	1		mg/L	12/03/2004 1000 SP	EPA 418.1
Anions						
Nitrogen, Nitrate-Nitrite (as N)	1.62	0.05		mg/L	12/02/2004 1109 RM	EPA 353.2
Cations						
Calcium	53	1		mg/L	12/01/2004 1031 MH	EPA 200.7
Magnesium	22	1		mg/L	12/01/2004 1031 MH	EPA 200.7

These results apply only to the samples tested.

Qualifiers:

- Value exceeds Maximum Contaminant Level
- E Value above quantitation range
- J Analyte detected below quantitation limits
- ND Not Detected at the Reporting Limit

B Analyte detected in the associated Method Blank
H Holding times for preparation or analysis exceeded
L Analyzed by a contract laboratory
S Spike Recovery outside accepted recovery limits

LOD RECD
FEB 15, 2005
PERMIT 658

Reviewed by:



TRIP BLANK RESULTS

*GROUNDWATER MONITORING
MCC QUARRIES*

LQD RECD
FEB 15.2005
PERMIT 658

Sample Analysis Report

CLIENT: Mountain Cement Company
5 Sand Creek Road
Laramie, WY 82070

Date Reported: 12/13/2004

Report ID: S0412003001

Project: Well Monitoring
Lab ID: S0412003-005
Client Sample ID Trip Blank
Matrix: Water

Work Order: S0412003
Collection Date:
Date Received: 12/1/2004 9:15:00 AM

Analyses	Result	PQL	Qual	Units	Date Analyzed/Init	Method
General Parameters						
Electrical Conductivity	ND	5		µmhos/cm	12/01/2004 1330 KA	SM 2510B
Total Dissolved Solids (180)	ND	10		mg/L	12/01/2004 1216 KA	SM 2540
Alkalinity, Total (As CaCO ₃)	ND	5		mg/L	12/01/2004 1330 KA	SM 2320B
Hardness, Calcium/Magnesium (As CaCO ₃)	ND	1		mg/L	12/02/2004 1337 KA	SM 2340B
TPH 418.1	ND	1		mg/L	12/03/2004 1000 SP	EPA 418.1
Anions						
Nitrogen, Nitrate-Nitrite (as N)	ND	0.05		mg/L	12/02/2004 1111 RM	EPA 353.2
Cations						
Calcium	ND	1		mg/L	12/01/2004 1053 MH	EPA 200.7
Magnesium	ND	1		mg/L	12/01/2004 1053 MH	EPA 200.7

These results apply only to the samples tested.

Qualifiers:

- Value exceeds Maximum Contaminant Level
- E Value above quantitation range
- J Analyte detected below quantitation limits
- ND Not Detected at the Reporting Limit

B Analyte detected in the associated Method Blank
H Holding times for preparation or analysis exceeded
L Analyzed by a contract laboratory
S Spike Recovery outside accepted recovery limits

LQD RECD
FEB 15, 2005
PERMIT 658

Reviewed by:



Sample Analysis Report

CLIENT: Mountain Cement Company
5 Sand Creek Road
Laramie, WY 82070

Date Reported: 9/10/2004

Report ID: S0408286001

Project:
Lab ID: S0408286-004
Client Sample ID Trip Blank
Matrix: Water

Work Order: S0408286
Collection Date:
Date Received: 8/25/2004 9:40:00 AM

Analyses	Result	PQL	Qual	Units	Date Analyzed/Init	Method
General Parameters						
Electrical Conductivity	ND	5		µmhos/cm	08/30/2004 1811 JG	SM 2510B
Total Dissolved Solids (180)	ND	10		mg/L	08/26/2004 1430 KA	SM 2540
Alkalinity, Total (As CaCO ₃)	ND	5		mg/L	08/30/2004 1811 JG	SM 2320B
Hardness, Calcium/Magnesium (As CaCO ₃)	ND	1		mg/L	08/31/2004 1050 JG	SM 2340B
TPH 418.1	ND	1		mg/L	09/07/2004 1005 LA	EPA 418.1
Anions						
Nitrogen, Nitrate-Nitrite (as N)	ND	0.05		mg/L	08/27/2004 1351 RM	EPA 353.2
Cations						
Calcium	ND	1		mg/L	08/26/2004 1133 MH	EPA 200.7
Magnesium	ND	1		mg/L	08/26/2004 1133 MH	EPA 200.7

These results apply only to the samples tested.

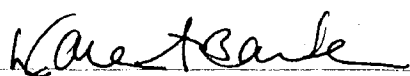
Qualifiers:

- * Value exceeds Maximum Contaminant Level
- E Value above quantitation range
- J Analyte detected below quantitation limits
- S Spike Recovery outside accepted recovery limits

B Analyte detected in the associated Method Blank
H Holding times for preparation or analysis exceeded
ND Not Detected at the Reporting Limit

Page 4 of 4

Reviewed by:



LQD RECD
FEB 15.2005
PERMIT 658

Report ID: 010409260

1673 Terra Avenue
Sheridan, WY 82801

WATER QUALITY REPORT

Client: Mountain Cement Company
5 Sand Creek Road
Laramie, WY 82070

Project: Misc.

Sample ID: Trip Blank

Lab ID: 0104W09263

Matrix: Water

Condition: Cool/Intact

Date Received: 06/10/04

Date Reported: 06/30/04

Date Sampled: / /

Parameter	Analytical Result	Units	PQL	Method	Analysis		
					Date	Time	Init.
General Parameters							
Lab Conductivity @ 25°C	<5	µmhos/cm	5	SM 2510 B	06/11/04	1346	JG
Total Dissolved Solids @ 180°C	70 AN	mg/L	10	SM 2540 C	06/11/04	0700	JG
Total Alkalinity as CaCO3	1.5	mg/L	1.0	SM 2320 B	06/11/04	1420	JG
Total Hardness as CaCO3	<1.0	mg/L	1.0	SM 2340 B	06/11/04	1228	
Nitrate + Nitrite as N	0.03	mg/L	0.01	EPA 353.2	06/14/04	1337	RM
TPH 418.1	<1	mg/L	1	EPA 418.1	06/14/04	0948	LA

These results only apply to the samples tested. AN - Analysis repeated with no significant changes.

Reference: "Standard Methods For The Examination of Water and Wastewater", 19th ed., 1995.

EPA 600/R93/100, "Methods for the Determination of Inorganic Substances in Environmental Samples", Aug. 1993.

U.S.E.P.A 600/4-79-020, "Methods for Chemical Analysis of Water and Wastes", 1983.

Reviewed By:

Wade Nieuwsma, Water Lab Supervisor

LQD RECD
FEB 15.2005
PERMIT 658

WATER QUALITY REPORT

Client: Mountain Cement Company
5 Sand Creek Road
Laramie, WY 82070

Project: Well Monitoring

Sample ID: Trip Blank

Lab ID: 0104W03173

Matrix: Water

Condition: Cool/Intact

Date Received: 03/11/04
Date Reported: 03/25/04
Date Sampled: / /

Parameter	Analytical Result	Units	PQL	Method	Analysis		
					Date	Time	Init.
General Parameters							
Lab Conductivity @ 25°C	<5	µmhos/cm	5	SM 2510 B	03/22/04	1542	RM
Total Dissolved Solids @ 180°C	<10	mg/L	10	SM 2540 C	03/12/04	1300	RM
Total Alkalinity as CaCO3	1.5	mg/L	1.0	SM 2320 B	03/22/04	1542	RM
Total Hardness as CaCO3	<1.0	mg/L	1.0	SM 2340 B	03/12/04	0628	
Nitrate + Nitrite as N	<0.01	mg/L	0.01	EPA 353.2	03/24/04	1516	JF
TPH 418.1	<1	mg/L	1	EPA 418.1	03/22/04	0941	LA

These results only apply to the samples tested.

Reference: "Standard Methods For The Examination of Water and Wastewater", 19th ed., 1995.

EPA 600/R93/100, "Methods for the Determination of Inorganic Substances in Environmental Samples", Aug. 1993.

U.S.E.P.A 600/4-79-020, "Methods for Chemical Analysis of Water and Wastes", 1983.

Reviewed By:

Karen Barten
Karen Barten, Project Manager

LQD RECD
FEB 15.2005
PERMIT 658

WATER QUALITY REPORT

Client: Mountain Cement Company
5 Sand Creek Road
Laramie, WY 82070

Project: Well Monitoring

Sample ID: Trip Blank

Lab ID: 0104W00490

Matrix: Water

Condition: Cool/Intact

Date Received: 01/15/04

Date Reported: 01/27/04

Date Sampled: / /

Parameter	Analytical Result	Units	PQL	Method	Analysis		
					Date	Time	Init.
General Parameters							
Lab Conductivity @ 25°C	<5	µmhos/cm	5	SM 2510 B	01/16/04	1723	RM
Total Dissolved Solids @ 180°C	<10	mg/L	10	SM 2540 C	01/16/04	1010	SV
Total Alkalinity as CaCO3	1.0	mg/L	1.0	SM 2320 B	01/16/04	1723	RM
Total Hardness as CaCO3	<1.0	mg/L	1.0	SM 2340 B	01/16/04	0613	
Nitrate + Nitrite as N	<0.01	mg/L	0.01	EPA 353.2	01/16/04	1501	JF
TPH 418.1	<1	mg/L	1	EPA 418.1	01/26/04	0959	LA

These results only apply to the samples tested.

Reference: "Standard Methods For The Examination of Water and Wastewater", 19th ed., 1995.

EPA 600/R93/100, "Methods for the Determination of Inorganic Substances in Environmental Samples", Aug. 1993.

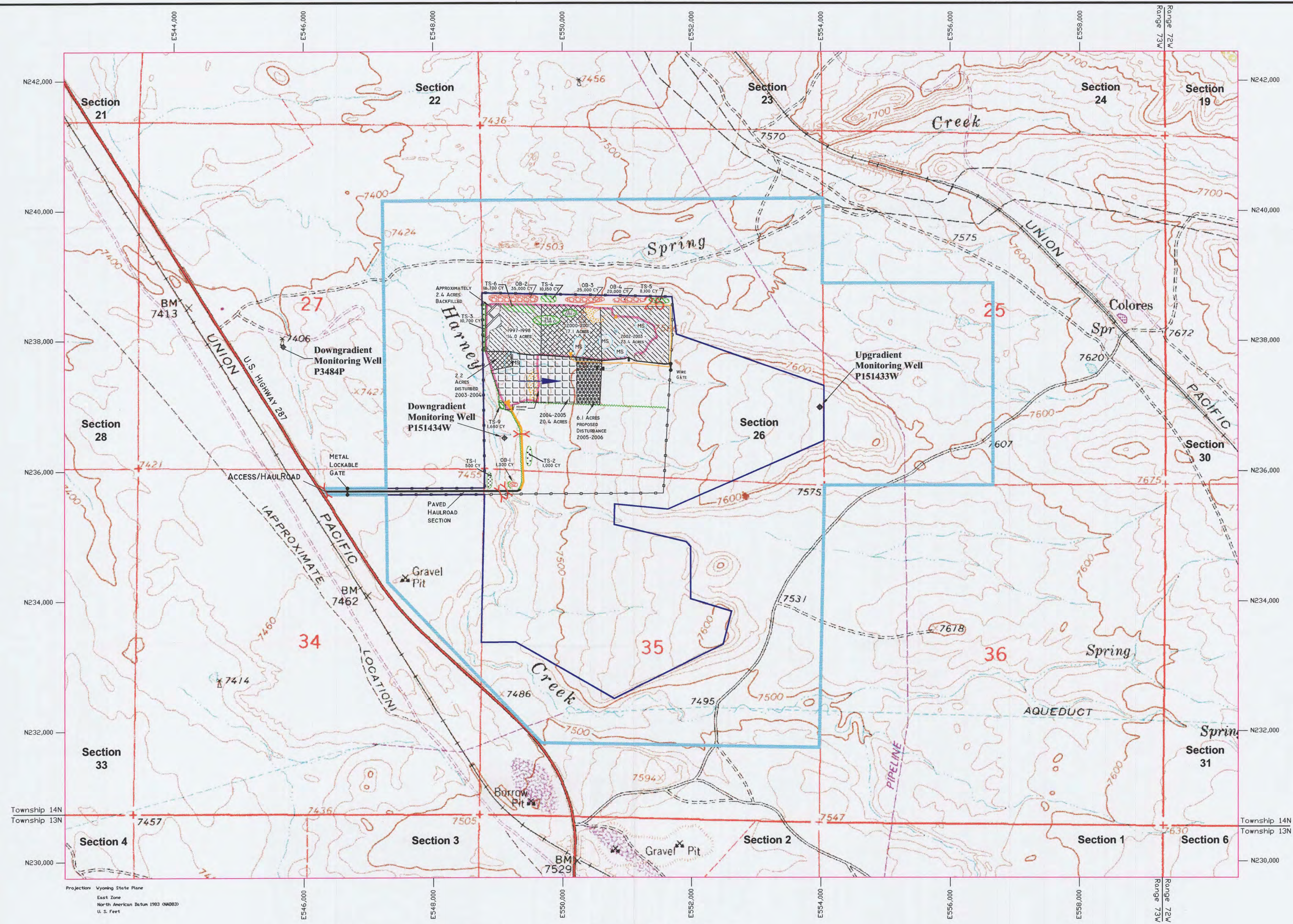
U.S.E.P.A 600/4-79-020, "Methods for Chemical Analysis of Water and Wastes", 1983.

Reviewed By:

Karen Barten

Karen Barten, Project Manager

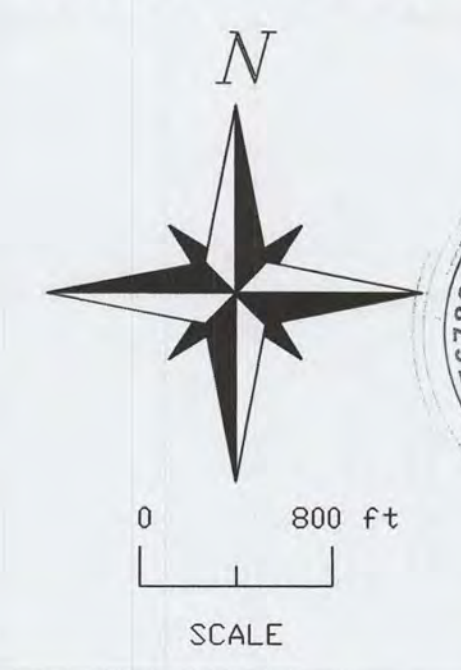
LDD RECD
FEB 15.2005
PERMIT 658



LEGEND

- Permit Boundary
- Affected Area Boundary Limit
- Access/Haulroad with Paved Section
- Established (Seeded) Topsoil Stockpile with reference number
- Current Topsoil Stockpile with reference number
- Current Overburden Stockpile with reference number
- Current Material Stockpiles
- Shot/Blasted Limestone
- Disturbed 1997-1998 Approximately 14.0 Acres
- Disturbed 2000-2001 Approximately 17.1 Acres
- Disturbed (Stripped) 2003-2003 Approximately 23.4 Acres
- Disturbed (Stripped) 2003-2004 Approximately 5.3 Acres
- Disturbance 2004-2005 Approximately 20.4 Acres
- Proposed Disturbance 2005-2006 Approximately 6.1 Acres
- Backfilled 2004-2005 Approximately 2.4 Acres
- Fence
- Culverts
- Gates
- Monitoring Wells
- Direction of Mining
- Quarry High Wall
- Pit Access Ramps
- Current ASCM (Rock Check Dams/Hay Bales)

SCALE 1" = 800'
CONTOUR INTERVAL 20'



**Permit #658
Weaver Limestone Quarry
Annual Report Map AR-1
Mining History
February 28, 2004 - February 27, 2005**

Mountain Cement Company
5 Sand Creek Road
Laramie, WY 82070

Red Buttes, Wyo.
USGS Quad Map (Enhanced DRG) LQD RECD
Township 14N, Range 73W, 6th P.M. FEB 15, 2005
Sections 25, 26, 34 & 35
Albany County, Wyoming
PERMIT 658

February 10, 2005 by MJB

Land Description	Acres
Permit Area	1,372.5
Area to be Affected	511.14
Current Affected Area	94.3
Total Area to be Affected Remaining	416.84
Lands Requiring Area Bond Cost	94.3
Proposed Disturbance for 2005-2006	6.1
Lands Requiring Full Incremental Bond Cost	0.0
Lands Requiring Partial Incremental Bond Cost (Receding)	0.0
Lands with Requested Full Bond Release, >2Years	0.0
Lands w/ Approved Full Bond Release	0.0
Subtotal (Incremental Bond Total)	100.4
Total Native Land Remaining in Permit Area	1272.1
Total of Bonded, Bond Released and Native Lands	1372.5

Current Stockpile Summary		
Pile	Volume (CY)	Placement Date
TS-1	500	1996-1997
TS-2	1,300	1997-1998
TS-3	10,700	1997-1998
TS-4	10,150	2000-2001
TS-5	8,100	2001-2002
TS-6	16,700	2003-2004, 2004-2005
TS-7	2,800	2004-2005
TS-8	15,100	2004-2005
TS-9	1,400	2004-2005
OB-1	35,000	Unknown (by Harney Creek Crossing)
OB-2	25,000	1997-1998, 2002-2003
OB-3	25,000	2000-2001, 2002-2003
OB-4	20,000	2002-2003
Total topsoil available for reclamation:		66,310 CY
Total overburden available for reclamation:		81,300 CY

Notes:
1. Current mining activity was initially field surveyed using a commercial grade GPS unit, performed on September 1, 2003; maximum Precision of Dilution was 2.2. Features and geographical data was updated on February 2, 2005.
2. Field conditions and feature locations may vary due to errors associated with GPS surveying & mapping methods and digital raster graphic (DRG) imaging errors portrayed on this map.
3. The quarry was currently active. All mining activity and features portrayed are current as of February 2, 2005.